

Court No. - 29

Case :- WRIT - C No. - 33261 of 2019

Petitioner :- Satya Deo Sharma

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Ajay Kumar Sharma, Atul Sharma

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Pankaj Mithal, J.

Hon'ble Vivek Agarwal, J.

Heard learned counsel for the petitioner.

Sri Baleshwar Chaturvedi, Advocate has accepted notice on behalf of respondent No.2.

The petitioner is facing recovery of Rs.1,24,677/- as electricity dues in respect whereof recovery certificate has been issued on 31.07.2019.

The petitioner submits that he is ready and willing to pay the entire amount provided some installments are fixed. He further submits that he is also entitled to the waiver of surcharge and interest for which also he has made request to the Executive Engineer.

In view of the aforesaid facts and circumstances as the prayer for fixing installments and other things can be considered by the Executive Engineer under Clause 6.14 of the U.P. Electricity Supply Code, 2005, we dispose of the writ petition with liberty to the petitioner to file a fresh representation in this regard before the Executive Engineer within a period of two weeks from today.

In case, any such representation is filed, the Executive Engineer shall consider it in accordance with law most expeditiously preferably within a period of one month and the recovery shall be subject to the decision of the Executive Engineer.

Petition stands **disposed off**.

Order Date :- 19.10.2019

Ashutosh